



Appeal Decision

Hearing held on 19 and 20 August 2026

Site visit made on 19 August 2026

by J Bowyer BSc(Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 15th September 2026

Appeal Ref: 6008314

Land off Eastbourne Road, Polegate BN26 5DD

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Aldi Stores Ltd against the decision of Wealden District Council.
 - The application Ref is WD/2025/0904/MAJ.
 - The development proposed is 'hybrid planning application comprising: full application for the erection of a foodstore (Use Class E(a)) with associated access roads, parking, servicing area, and landscaping; and outline application (all matters reserved except for access) for the erection of a care home (Class C2), with associated access roads, parking, servicing area, and landscaping'.
-

Decision

1. The appeal is allowed and planning permission is granted for a hybrid planning application comprising: full application for the erection of a foodstore (Use Class E(a)) with associated access roads, parking, servicing area, and landscaping; and outline application (all matters reserved except for access) for the erection of a care home (Class C2), with associated access roads, parking, servicing area, and landscaping at Land off Eastbourne Road, Polegate BN26 5DD in accordance with the terms of the application, Ref WD/2025/0904/MAJ, subject to the conditions in the attached schedule.

Preliminary Matters

2. As set out in the banner heading above, the appeal relates to a 'hybrid' application seeking full planning permission for a foodstore with associated access roads, parking, servicing area, and landscaping; and outline planning permission for a care home with associated access roads, parking, servicing area, and landscaping.
3. In respect of the outline element, approval is sought for access, but all other matters are reserved for future consideration. I have had regard to the submitted plans. However, I have treated all details of the outline element apart from those relating to access as illustrative.
4. The Council's decision notice included five reasons for refusal. However, the agreed Statement of Common Ground confirms that the fifth of these which comprised a statement referring to a requirement to work positively and proactively with the applicant was an overarching note rather than a standalone reason for refusal. I have determined the appeal accordingly.
5. The appellant's statement of case submitted as part of the appeal included updated technical appendices in relation to transport, arboricultural, landscape and visual impact assessment, ecology and biodiversity net gain ('BNG') and flooding and drainage matters. It also referred to a requirement for additional removal of trees

along the site frontage to accommodate access which had not been identified as part of the proposal at the time of the Council's decision and included revised plans setting out an amended landscaping scheme, as well as a revised site access arrangement plan within the transport appendix¹.

6. The appeal submissions including the revised plans represent a change to the scheme that was before the Council and interested parties at the time of the Council's decision, but having regard to their nature, I am satisfied that there would not be a fundamental change to the scheme. The Council and East Sussex County Council ('ESCC') as the Local Highway Authority ('LHA') considered the updated appeal evidence and revised plans within their appeal statements. At my request, the Council also facilitated a further specific reconsultation with other consultees and interested parties highlighting the appeal stage information. As a consequence, I am satisfied that parties have had adequate opportunity to make representations that they may have wanted to make on the scheme as amended and would not be unfairly prejudiced by my consideration of the appeal submissions. I have therefore determined the appeal on the basis of the amended plans and with regard to the updated technical appendices.
7. Prior to the opening of the Hearing, I was provided with various iterations of a draft deed of agreement under the provisions of section 106 of the Town and Country Planning Act 1990 (as amended) ('the Act'). During the hearing, the appellant advised that there remained some areas of disagreement between parties. Accordingly, they proposed a bilateral agreement containing those obligations that were agreed between the appellant, Council and ESCC ('the Bilateral'), and a separate unilateral undertaking in respect of disputed provisions ('the UU'). Obligations and undertakings within the Bilateral and UU were discussed at the Hearing, and signed and completed versions of the agreements were submitted shortly after the Hearing closed.
8. The development plan currently includes the Wealden District Core Strategy Local Plan 2013 ('the CS') and saved policies of the Wealden Local Plan 1998 ('the LP').
9. The Council is preparing a new Local Plan for the period up to 2042. This is at a relatively early stage having not yet been submitted for examination, but it includes a proposed allocation of the appeal site for development with an indicative capacity of 60 dwellings at emerging Policy POL4. Both main parties consider the emerging new Local Plan to attract limited weight and given the stage reached and that it is subject to change, I agree.
10. Finally, the Government published a revised version of the National Planning Policy Framework ('the Framework') very shortly before the Hearing opened. Both main parties confirmed that they were able to address any implications of the Framework during the Hearing and I have determined the appeal having regard to the comments made and the updated Framework.

Main Issues

11. The main issues are:

- i) whether or not there would be suitable access to the development including

¹ Plan nos 19355_SFW_XX_XX_DR_L_0001 Rev P06 (Landscape Plan – Option 1 (Aldi)), 19355_SFW_XX_XX_DR_L_0002 Rev P06 (Outline Landscape Plan – Option 1 (Care Home)), 19355_SFW_XX_XX_DR_L_0003 Rev P02 (Landscape Masterplan) and 23071-010 Rev E (Proposed Site Access Arrangement Plan).

- with particular regard to effects on highway safety;
- ii) the effect of the proposal on the character and appearance of the area having particular regard to effects on trees and vegetation;
- iii) the effect of the proposal on protected and priority species;
- iv) whether or not there would be adequate provision for BNG; and
- v) whether or not the proposal would make adequate provision for drainage.

Reasons

12. The appeal relates to a broadly rectangular parcel of land on the outskirts of Polegate. I understand that the site was formerly used as playing fields, but that this ceased over 20 years ago and it is now significantly overgrown. To the front of the site is a steep embankment along the A2270 Eastbourne Road with a large number of mature trees and understorey vegetation.

Highway Safety

13. As part of the proposal, a new vehicular access would be created between the site and Eastbourne Road. In view of additional speed survey analysis, a visibility splay survey and the updated site access arrangement plan submitted by the appellant as part of the appeal, the Council and LHA have confirmed that they are now satisfied that a technically acceptable highway access would be achievable such that there would not be unacceptable risk to highway safety. I have no firm reason to reach a different view.
14. Achieving that access would require regrading works to the embankment along the site frontage and the removal of trees and vegetation. The proposal also includes a pedestrian footway along the frontage. The effect of these works on the character and appearance of the area is considered under my second main issue.
15. In principle however, I note that while the works associated with providing access would in part affect land outside of the appeal site boundary, this land would be within the highway extent where off-site highway works can be delivered through a s278 agreement under the Highways Act 1980 (as amended) ('the Highways Act').
16. This would require a separate approval process. I have also noted reference to the duty under s96A of the Highways Act² for the LHA to carry out public consultation before felling a street tree which would apply where trees on highway land were removed. The provisions of s96A of the Highways Act indicate that the duty to consult does not apply in circumstances including where the felling of the tree is required for the purpose of carrying out development authorised by planning permission or outline planning permission granted under specified sections of the Act, including sections that would apply to the current appeal. Even if the s96A duty for public consultation did apply however, there is no firm evidence before me to indicate that removal of highway trees could not or definitely would not then be possible following consultation.
17. I was also informed at the Hearing that the ESCC 'Mitigation planting, commuted sums, BNG (biodiversity net gain) and CAVAT³ for all tree removal' note ('the Tree Removal Note') is an informal guidance note which has not been subject to consultation and which is not adopted as planning guidance by either the Council or

² Inserted by s115 of the Environment Act 2021

³ Capital Asset Value for Amenity Trees

ESCC. In view of this status, I afford very limited weight to the Tree Removal Note in my determination of this appeal. There is further no firm evidence before me to indicate that there would be no prospect of a s278 agreement providing for the highway works and removal of trees should planning permission be granted, even if measures including mitigation planting did not fully adhere to guidance in the Tree Removal Note.

18. Notwithstanding a need for separate approvals, I find no compelling evidence to suggest that there would be no reasonable prospect of a technically suitable highway access being delivered if the appeal were to be allowed. Planning obligations would also require that details of the access were established through a s278 agreement before development could commence and that the approved access was then provided before the development was brought into use. This would ensure that a suitable access would be provided for development to occur.
19. In addition, the pedestrian footway along the frontage of the site would not be fully within the highway. However, the main parties reached agreement during the Hearing that provision for the footway to remain open and accessible would be appropriately secured by planning obligations which appear in the UU. This would ensure that safe pedestrian connections were appropriately maintained.
20. Given the above, I am satisfied that the development could be carried out to ensure safe and suitable access for all users and I conclude that there would not be unacceptable harm to highway safety. I therefore find no conflict with saved Policy TR3 of the LP which includes a requirement for provision of a satisfactory means of vehicular, cycle and pedestrian access. The proposal would also accord with requirements in the Framework broadly seeking safe routes that minimise scope for conflict, mitigation of significant adverse impacts of development on highway safety and to avoid unacceptable impact on highway safety.

Character and Appearance

21. The appeal site is currently undeveloped, but following recent and ongoing development of the adjacent site referred to by the main parties as 'Hindslands', it is now essentially surrounded by existing built form.
22. The Council has not disputed the appellant's assessment within its arboricultural evidence that a number of the trees along the Eastbourne Road frontage of the site are of low quality or poor condition. However, others are of higher quality and as a group, the scale and density of the trees and lower level vegetation cover together with similar features to the opposite side of Eastbourne Road provide for a strong verdant quality and enclosure to this part of the road. That said, there are views of the far more open backdrop of the main part of the site on the approach along Eastbourne Road and in glimpses through the frontage that were possible even when vegetation was in near full leaf as was the case at the time of my visit. The relatively limited depth of the tree line along the frontage is therefore apparent and I find that the trees here are consequently appreciated as a belt rather than a woodland parcel.
23. Moreover, the strong verdant quality and sense of enclosure provided by vegetation is confined to a short stretch of Eastbourne Road past the site and from my observations, is clearly appreciated as sitting between built development that lines Eastbourne Road to either side. Given this context, I cannot agree with the Council that there is a rural or semi-rural character to the area around the site. Nor that the

site marks a particular gateway to the settlement. Instead I consider that it is appreciated as part of the established Polegate/Willingdon urban area. Indeed, while the Council refers to the Wealden Landscape Sensitivity Assessment to Residential and Employment Development 2023 ('the LSA') as showing the site lying within Landscape Character Area 1A: Pevensey Levels as defined by the Landscape Character Assessment 2022 ('the LCA'), the appellant highlights that the LCA itself puts the site within the settlement rather than the wider landscape setting of Polegate.

24. Furthermore, other street-side vegetation in the vicinity of the site is typically sparser and more limited. The belt of trees and vegetation along the site frontage is a notable and undoubtedly attractive natural feature of this part of Eastbourne Road, but it is not therefore a defining element of the character and appearance of the wider area or settlement. From the evidence before me, it is also a comparatively modern element which established in the latter part of the 20th Century subsequent to realignment of the Eastbourne Road, rather than forming a historic landscape feature.
25. The site frontage vegetation is clearly visible from points around Eastbourne Road near to the site, but topography and the presence of surrounding development and vegetation cover notably reduce available public views beyond the very local area. There are some longer-distance views including from elevated positions within the South Downs National Park ('the SDNP'), but the site makes up a very small element of these views and from my observations, it appears as an unremarkable and incidental element of the urban area.
26. Having regard to these factors, I find that the site frontage contributes to the character and appearance of the area. However, while the trees here do make a valuable contribution to the character of the settlement in the terms of LP Policy EN12, this contribution is very localised and the influence on the wider area beyond the immediate vicinity of the site is limited.
27. In itself, the Council does not raise concerns about development proposed within the main part of the appeal site and I am also satisfied that this development would, or in the case of the outline element could be designed at reserved matters stage to, assimilate suitably with its surroundings.
28. However, I have noted above that providing suitable highway access would require regrading works and removal of vegetation and trees along the extent of the site frontage. The appellant's evidence indicates that this would include removal of one Category A⁴ tree and a large number of Category B⁵ trees, as well as further Category C⁶ and Category U⁷ trees and groups.
29. The evidence before me does not indicate that trees to be removed are specifically protected and I have noted above that the belt is not a historic landscape feature, but the loss of trees and vegetation which contribute to the character and appearance of the area is undoubtedly regrettable.
30. I also acknowledge the Council's suggestion that a development providing dwellings on the site in accordance with Policy POL4 of the emerging new Local

⁴ High quality and estimated remaining life expectancy of at least 40 years

⁵ Moderate quality and estimated remaining life expectancy of at least 20 years

⁶ Low quality with an estimated life expectancy of at least 10 years or young tree with a stem diameter below 150mm

⁷ Poor condition with an estimated life expectancy of less than 10 years

Plan could be accessed from Courtland Road or the adjacent Hindslands development, minimising loss of trees and vegetation on the Eastbourne Road frontage. However, it is common ground that the emerging new Local Plan attracts limited weight and while the proposal does not reflect the draft allocation, the Council has not objected to the principle of the development that is now proposed in itself. Nor has it disputed the appellant's evidence that providing suitable vehicular access to serve a foodstore would only be possible from this point on Eastbourne Road necessitating the indicated removal of vegetation. On that basis, there would appear no realistic alternative to the indicated access and associated requirement for removal of trees to accommodate the development that is before me to consider in this appeal.

31. To mitigate the effects of tree losses, the appellant proposes a scheme of replacement planting. Notwithstanding the landscaping scheme submitted as part of the appeal, the main parties agreed during the Hearing that this would need to be refined with an updated scheme secured by planning condition in the event that the appeal was allowed.
32. The precise details of new planting and landscaping are not therefore certain, but the appellant indicates that landscaping would include extra heavy and semi-mature standard specimens with a mix of native species including some evergreens as well as understorey and hedgerow planting to create screening beneath the canopies. Even so, I am in no doubt that replacement planting would be unable to replicate the scale and density of the existing belt of vegetation and mature trees, and the degree of enclosure that they provide. The effect would be particularly pronounced early on before new planting established and matured. It would then reduce somewhat over time as planting did mature, but the landscaping would still need to be managed and maintained, including to retain adequate visibility of the foodstore signage and access from the highway. Moreover, the access itself would result in a distinct break in the landscaped frontage. The change from the existing condition would accordingly be appreciable.
33. That said, while the area available for planting means that it is unlikely that replacement planting would comply with the Tree Removal Note, I have noted above that this guidance attracts limited weight in my decision. Although the LHA indicated a preference for mitigation planting for highway trees to be within the highway extent, it also accepted that in principle, mitigation planting could be provided on land outside of the highway extent.
34. In this case, details of landscaping would be the subject of a planning condition, but I am satisfied that there would be adequate space, both within the site and highway extent, to accommodate planting of reasonable depth and scale to either side of the access sufficient to maintain an impression of a strong landscaped corridor to this part of Eastbourne Road and to limit views into the site. Although it may be reduced from the existing situation, new planting would also provide screening of the adjacent Hindslands development in views on the approach from Polegate which I consider would be sufficient to soften its visual impact and avoid it becoming unduly prominent. Moreover, the level and nature of planting would not stand out as incongruous or uncharacteristic within the context of the surrounding built development and landscaping, and suggested planning conditions and obligations would provide for ongoing management and maintenance of planting to ensure its continued longevity and contribution.

35. In addition, the appellant clarified during the Hearing that the only retaining walls proposed would be to the foodstore car park. Some views of these walls would be possible including particularly along the access, but their position set back from the road and behind landscaping means that they would not be unduly prominent in the street scene. Footways within the frontage would add hardsurfacing, but they would be relatively modest elements against the surrounding soft landscaping and subject to careful consideration for the placement of species and construction techniques to deflect root growth, I see no reason that the footway would be damaged by or incompatible with tree growth leading to requirements to remove trees in future. Noting too the built form which provides the surrounding context, I am satisfied that the visual impact of engineered features at the site would be limited and would not cause further meaningful detriment to the character and appearance of Eastbourne Road.
36. Balancing these factors, I find that the proposal would cause a reduction in the sense of verdant enclosure to Eastbourne Road. This would be the case even once planting had established in the longer term, with the difference even more marked early on. Accordingly, new landscaping and replacement planting would not fully mitigate for the loss of existing trees and vegetation which are an attractive feature in the area. However, there would still be some sense of a landscaped corridor, and the more urban quality of the site and mitigation planting would not in itself stand out given the surrounding context of built form.
37. In addition, the topography and presence of surrounding development and vegetation cover mean that the change would be most clearly publicly appreciated from relatively short sections of Eastbourne Road close to the site and the roads and pathways that branch from it. These views would be localised and experienced by passing motorists, pedestrians and cyclists who would have a lower sensitivity to change. There would be some views from nearby dwellings, but having regard to the potential for planting to maintain some sense of a landscaped corridor and to provide screening of development which would be set back into the site, the development would not appear significantly out of character and visual effects would reduce in the longer term as new planting matured.
38. Some longer distance views would be possible, including from Butts Brow which is within the SDNP. In these views however, the site is clearly appreciated as sitting within the established built-up area. Although there may be some appreciation of the change in tree cover along the Eastbourne Road corridor if you were specifically looking for it, the mitigation planting would still provide for a green fringe to the site and mature planting to the west side of the road would also remain. The site would not be unduly exposed and the level and nature of landscaping or presence of built development on the site certainly would not stand out within the surrounding built context.
39. I note comment in the LSA suggesting retention, protection and enhancement of mature hedgerows, trees and vegetation along Eastbourne Road to minimise influence on landscape character and that development should minimise views from the SDNP. Nevertheless, the site makes up only a very tiny part of the expansive, panoramic views from the SDNP and I find given the above factors that the appeal development would not be conspicuous within or detrimental to the appreciation of longer distance views. I am further satisfied that it would not detract from the wider Low Weald landscape, and that the natural beauty, wildlife and cultural heritage of the SDNP would be conserved. The development would not

therefore conflict with the duty set out in the National Parks and Access to the Countryside Act 1949 (as amended) to seek to further the statutory purposes of national parks.

40. Drawing these matters together then, I find that the alterations to the site frontage and removal of existing trees and vegetation here would detract from the character and appearance of the area. However, the harm would reduce over time as new landscaping established. It would also be localised with adverse visual effects generally limited to an area around a relatively short section of Eastbourne Road and experienced mainly by users of this road and the closest neighbouring dwellings. These factors moderate the degree of harm that would be caused.
41. Nevertheless, I conclude that the proposal would cause some harm to the character and appearance of the area around the site. To that extent, there would be conflict with Policies EN12 and EN27 of the LP insofar as they include requirements seeking broadly to retain and enhance the contribution of trees and woodland areas to the landscape character of the District; to resist loss of trees which make a valuable contribution to the character of the landscape, a settlement or its setting; and development and landscaping that respects the character of adjoining development and promotes local distinctiveness.
42. The loss of trees and vegetation which would not be fully mitigated would also be contrary to guidance in the Wealden Design Guide 2008 ('the WDG') broadly seeking the retention and enhancement of trees, hedgerows and wooded areas as part of development and development that makes a positive contribution to local distinctiveness and the character and identity of a place.
43. Furthermore, the proposal would not fully accord with the Framework insofar as Policy DP3 seeks development that integrates with and enhances its surroundings and incorporates green infrastructure. However, while the loss of trees and vegetation at the site is certainly regrettable, I am satisfied that it would be necessary as part of the appeal development such that there would be clear justification for the conflict with Framework Policy DP3 and design standards in the development plan and WDG if I were to find the proposal otherwise acceptable. On that basis, Policy DP3 (3.) of the Framework does not indicate that development should necessarily be refused.
44. Insofar as it would not be possible to conserve and enhance the trees which are indicated to be removed as part of the development proposed, and the proposal includes landscaping which I am satisfied would create a well-designed place and integrate the development into its surroundings, even if it would not replicate the existing landscaping, the proposal would further not result in unacceptable conflict with Framework Policy N2. Subject to suggested conditions and planning obligations, I also see no reason that new landscaping would be incompatible with highways and other infrastructure requirements or the needs of users and there would be provision for tree-lined streets and long-term maintenance of trees in accordance with the requirements of Framework Policy N3.

Protected and Priority Species

45. Noting additional clarification and information provided by the appellant during the appeal and subject to suggested planning conditions, the Council confirmed at the Hearing that its only remaining concern in respect of effects on protected and priority species was in relation to effects on Hazel Dormouse. From the evidence

before me, I am also satisfied that there is now a sufficient basis to determine that other protected and priority species including bats, great crested newts, reptiles and badgers would not be harmed by the proposal.

46. In considering effects on Hazel Dormouse, the appellant's Ecological Impact Assessment Revision B ('the EclA') outlines that presence/absence surveys were undertaken between September 2024 and July 2025 in accordance with the methodology recommended in the Dormouse Conservation Handbook 2nd edition. In essence, 30 artificial nest tubes and four nest boxes were deployed within areas of scrub where dormice may naturally make nests and were checked throughout the survey season until a survey effort score of 20 was achieved. The EclA sets out that no dormice were recorded within any of the devices on any occasion and that with a minimum survey effort score of 20 achieved and no evidence of dormice, it can reasonably be assumed that they are absent from the site.
47. The Council does not contend that the survey would fail to accord with the Dormouse Conservation Handbook 2nd edition. However, the 3rd edition was published in March 2025. The Council argues that under the guidance in the 3rd edition, the survey effort score should be adjusted because only 34 devices were deployed rather than 50 and that this would result in a score of approximately 13.6 points rather than the required 20.
48. I acknowledge that the 3rd edition provides updated guidance on best practice and its advice that assumed absence should not be based on a search effort score of less than 20. Nevertheless, the guidance is just that. In this case, coverage of parts of the site by dense bramble scrub would make placing additional nest tubes or boxes to reach the recommended 50 devices at appropriate densities impractical. The Council suggests that the survey period could instead be extended until a survey score of 20 was achieved. However, while that may have been possible in principle, I have no firm reason to doubt the appellant's evidence that there was appropriate coverage of surveyed habitat on the site. The habitat not covered comprised dense, predominantly bramble, scrub, while surveyed areas also included other species including Oak, Sycamore, Ash and Hawthorn which the Council noted during the Hearing are identified within the Handbook along with bramble as valuable to dormice. Given the wider range of valuable species present within the surveyed areas, I agree with the appellant that it would be reasonable to expect that if any dormice were present within the un-surveyed areas, they would have extended out to utilise the resources within the surveyed areas and so would have been detected there.
49. Against that context and given the time period approaching a year that the survey was carried out over, it seems to me having regard to the particular circumstances and characteristics of the appeal site that extending the survey period would realistically offer limited practical or useful benefit in detecting dormice.
50. I also note that the 3rd edition of the Handbook was published only very shortly before the appeal application was submitted to the Council. There is no dispute that the survey effort was adequate in accordance with the guidance that was in place at the time surveys commenced and for some months after and having regard to my findings above, I consider in the very specific circumstances of this case that a departure from the guidance in the 3rd edition of the Dormouse Conservation Handbook is justified. Notwithstanding the failure to achieve a survey effort in accordance with the 3rd edition of the Dormouse Conservation Handbook, there is

in my judgement a sufficient basis to reasonably assume that dormice are absent from the site and would not be adversely affected by the proposal.

51. For these reasons and subject to the imposition of planning conditions, I conclude that the proposal would not cause harm to protected or priority species and I find no conflict with Policy WCS12 of the CS insofar as it seeks to prevent a net loss of biodiversity. The proposal would also accord with the Framework insofar as it includes requirements broadly to minimise any adverse impacts on biodiversity and for significant harm to biodiversity to be avoided, adequately mitigated or as a last resort compensated for.

Biodiversity Net Gain

52. Schedule 7A of the Act outlines a general biodiversity condition which is deemed to apply to every planning permission granted and which effectively mandates a requirement for 10% BNG, unless exemptions or transitional provisions apply.
53. The proposal includes some on-site biodiversity enhancements, but given the site constraints, the appellant confirms that biodiversity units would also be purchased to achieve the required 10% BNG, with units for the required habitat types being widely available.
54. Following submission of further information as part of the appeal and the inclusion of planning obligations within the Bilateral, the Council confirmed during the Hearing that it was satisfied that the proposal would make adequate provision for BNG. From the evidence before me, I have no firm reason to find differently or consider that the statutory biodiversity gain condition could not be successfully discharged.
55. Accordingly, I conclude that the proposal could make adequate provision for BNG to satisfy the requirements of Schedule 7A of the Act. It would also accord with Policy WCS12 of the CS insofar as it seeks a net gain in biodiversity, and provision in the Framework similarly outlining that proposals should contribute positively to the natural environment including through considering requirements for BNG where these apply.

Drainage

56. During the course of the appeal, the appellant produced a flood and drainage technical note dated 20 July 2026 which included an updated overland flow route drawing indicating that surface water would be captured on the appeal site. It also included Southern Water's response to a Level 1 Capacity Check Enquiry confirming adequate capacity to accommodate anticipated foul and surface water flows from the development.
57. The Lead Local Flood Authority subsequently indicated that outstanding drainage matters could be addressed through planning conditions, and on that basis, the Council confirmed at the Hearing that its concerns in respect of drainage had been addressed. There is no compelling evidence which would lead me to find otherwise.
58. I therefore conclude that subject to suggested planning conditions to secure further details of drainage design as well as verification of installation and provision for ongoing management and maintenance, the proposal would make adequate provision for drainage. Accordingly, I find no conflict with Policy CS2 of the LP which includes a requirement that adequate provision is made for drainage. The

proposal would also accord with the Framework insofar as it broadly seeks to manage flood risk and the incorporation of suitable sustainable drainage systems.

Other Matters

European Designated and Ramsar Sites

59. The Conservation of Habitats and Species Regulations 2017 (as amended) provide that before giving consent, permission or other authorisation for a plan or project which is likely to have a significant effect on a European site or Ramsar site and is not directly connected with or necessary to the management of that site, the competent authority must make an appropriate assessment of the implications of the plan or project for that site in view of that site's conservation objectives. That duty would now fall to me.
60. The appeal site is within the hydrological catchment area of the Pevensey Levels Special Area of Conservation ('SAC') and Ramsar site. The SAC is designated for the presence of Little whirlpool ram's-horn snail, while the Ramsar site is listed for the assemblage of wetland plants and invertebrates, and for aquatic plants, freshwater molluscs, aquatic beetles and dragonflies. Conservation objectives for the SAC seek broadly to ensure that the integrity of the site is maintained or restored, including by maintaining or restoring the extent, distribution, structure and function of the habitats of qualifying species; the supporting processes on which the habitats rely; and the populations and distribution of qualifying species.
61. The information before me identifies inappropriate water levels and water pollution as threats to the Pevensey Levels sites. Given the hydrological linkage between the appeal site and the Pevensey Levels, there would be potential for drainage from the development to affect water levels or quality to the detriment of the SAC and Ramsar site. A likely significant effect cannot therefore be ruled out.
62. To ensure that the development would not adversely affect the SAC and Ramsar site, the appellant refers to a comprehensive sustainable drainage system scheme engineered to control runoff quality and quantity at source, ensuring that potential pollutants generated during both the construction and operational phases are appropriately treated prior to discharge. This would include provision for a two-stage treatment system for surface water comprising permeable paving and an interceptor prior to connecting to Southern Water infrastructure.
63. Provision for drainage as outlined would be secured through suggested planning conditions requiring details of construction management, detailed surface water drainage schemes, a scheme for foul drainage, verification of surface water drainage and the management and maintenance of surface water drainage. A further condition would also ensure provision for foul drainage with necessary capacity.
64. I am satisfied that these measures would secure appropriate drainage to ensure that the proposal would not lead to inappropriate water levels or pollution at the SAC or Ramsar site. Natural England, the statutory nature conservation body, has also confirmed that it is content that the mitigation measures would be adequately secured and sufficient to avoid an adverse effect on the integrity of the sites.

65. I therefore find within the framework of an appropriate assessment that with mitigation secured through suggested conditions, the development would not adversely affect the integrity of the Pevensey Levels SAC or Ramsar site.

Heritage Assets

66. Polegate Windmill near to the site is a Grade II* listed building. It would formerly have stood in open countryside, but it is now surrounded by 20th Century suburban development and retains little of its original setting. Insofar as it relates to this appeal, I consider its significance to derive largely from its historic and architectural interest as a relatively intact and rare example of a tower mill dating to 1817.
67. The appeal site is physically and visually separated from the listed building by intervening development, and the evidence before me does not suggest any historic functional or other associations between the site and the listed building. Given these factors, I find the site to make no meaningful contribution to the significance of the listed building as part of its setting. Having regard to the scale and nature of the proposal and the relationship to the listed building, I agree with the main parties that the setting and significance of the listed building would be preserved.

Other matters

68. While the appeal site was historically playing fields, this use ceased over 20 years ago. The appellant's Playing Fields and Sports Assessment highlights that the site is recorded as 'lapsed' in the Council's Playing Pitch Strategy 2022 ('the PPS') and that reinstatement of playing field use is not recommended in the accompanying action plan. Given identified requirements for sports provision and the nature of recommended improvements in the PPS and new provision on the nearby 'Morningsmill' development site, the Assessment concludes that the playing fields at the site are surplus to requirements. The Council has not disputed this evidence and I am satisfied on the basis of the evidence before me that there would not be an unacceptable loss of sports facilities.
69. I note comments referring to existing traffic and congestion in the locality and difficulty experienced by residents of Hindslands in turning right onto Eastbourne Road. However, the LHA is now satisfied that a technically acceptable vehicular access for the development is achievable and has not raised concerns about effects on traffic, congestion or vehicle movements. As the relevant statutory consultee, I give significant weight to its position, and from the evidence before me find no firm reason to disagree with its views nor to conclude that there would be unacceptable impacts on highway or pedestrian safety, nor on the efficient operation of the highway network. Given too the likely levels of vehicle movements and the appellant's evidence indicating that the proposal would be able to serve needs for shopping that currently result in travel to destinations further afield, there would not be unacceptable impacts on air pollution.
70. Following amendments to the scheme made prior to the Council's decision, there would be step free access to the foodstore. The Council is satisfied that provision for parking would accord with standards and there is no firm evidence that the proposal would harmfully exacerbate any existing parking pressure in the local area. I also have no firm reason to doubt the appellant's retail evidence indicating that the proposal would not adversely affect the vitality or viability of nearby town or service centres.

71. The development would adjoin existing residential areas and would include both retail and a care home element. However, subject to conditions including in relation to delivery hours and operations, lighting design, details of plant and machinery and noise assessment, I am satisfied that the relationship would not cause unacceptable harm to residential living conditions.
72. The appellant's Flood Risk Assessment and Drainage Strategy identifies that the appeal site is at low risk of flooding. Given my findings above in respect of drainage and subject to conditions to require further details of provision for drainage and ongoing management and maintenance, I am satisfied that the development would not cause increased flood risk.
73. There is no detailed evidence that infrastructure providers or other utility services would be unable to make provision to adequately supply the development without unacceptable impacts on existing provision in the area.
74. I have taken into account representations made by interested parties including Parish Councils, but I am satisfied that none of the other matters raised would result in a level of harm that would justify dismissal of the appeal, either individually or collectively, and they do not alter my findings on the main issues.

Planning Obligations

75. Tests within the Community Infrastructure Levy Regulations 2010 (as amended) ('the CIL Regulations') provide that a planning obligation may only constitute a reason for granting planning permission for a development if the obligation is necessary to make the development acceptable in planning terms; directly related to the development; and fairly and reasonably related in scale and kind to the development. I have considered the obligations within the Bilateral and the UU in light of these tests and the evidence before me which includes a CIL Infrastructure Compliance Statement prepared by the Council.

Bilateral

76. The Bilateral includes obligations providing for a travel plan and travel plan auditing fee for each of the care home and foodstore elements of the proposal. These would be necessary to encourage use of sustainable modes of transport in accordance with requirements of the development plan and Framework, with the auditing fees reflecting ESCC Travel Plan Guidance 2020.
77. Further obligations would provide for approval and implementation of biodiversity gain and habitat management and monitoring plans and payment of a biodiversity gain monitoring fee for each of the care home and foodstore elements. These would be necessary to properly secure the delivery and long-term management and monitoring of habitats to provide biodiversity enhancements and BNG, with the monitoring fee calculated according to the scale and complexity of the proposal.
78. Additional obligations would restrict the works that may take place prior to the submission and approval of details reserved by conditions in relation to an arboricultural method statement, reptile mitigation strategy and construction management. These are necessary to safeguard trees and ecology.
79. The Bilateral also includes Council covenants in relation to the use and repayment of contributions. This would ensure that they were used for the intended purposes to make the development acceptable in planning terms and so would be necessary.

80. In light of the supporting information and evidence that is before me, I find that each of these obligations would be necessary to make the development acceptable in planning terms, directly related to the development, and fairly and reasonably related in scale and kind to the development. They would therefore meet the tests set out in the CIL Regulations and can be given weight, and I have taken them into account.
81. The Bilateral also includes provision for a monitoring fee. From the information before me, I have no firm reason to doubt that this would be fairly and reasonably related in scale and kind to the development and estimated costs of monitoring. On that basis, the provision would accord with Regulation 122(2A) of the CIL Regulations.

UU

82. Parts 1 and 2 of Schedule 2 of the UU include obligations providing for highway works as well as payment of a 'Highways Contribution', albeit that there is provision for these requirements to be confirmed through my decision.
83. The UU sets out that the Highways Contribution is either £74,000 or £270,000 towards the County Council Hailsham, Polegate and Eastbourne Movement and Access Corridor ('HPEMAC') scheme until December 2029, after which it is to be allocated to bus service improvements. From the information before me, I am satisfied that such a contribution would in principle be necessary to support sustainable travel and minimise congestion which could be exacerbated by the development.
84. The higher figure is as sought by ESCC according to a calculation based on the development's predicted peak traffic generation on a per dwelling equivalent level. However, the appellant argues that a proportion of trips to the foodstore would replace trips that would have been made anyway but to another store elsewhere, or linked trips made by those who are within the area anyway. These would not therefore be 'new' trips on the highway network generated by the development. The appellant therefore proposes the lower Highways Contribution figure which they indicate is calculated on the basis of net, rather than gross, peak trips.
85. During the Hearing, the LHA advised that the methodology used to determine the Highways Contribution was intended to capture the demand trip equivalent. Neither the LHA nor the Council disputed the appellant's evidence that there would be replacement or linked trips to the development, nor the appellant's assessment of net vehicle trip generation levels. On that basis, it seems to me that the appellant's Highways Contribution figure would more appropriately represent the actual demand trip equivalent generated by the development, at least in terms of vehicles.
86. Moreover, the LHA highlighted that the proposal would result in new trips by wheeling, cycling or on foot which may not otherwise have occurred in the local area. Be that as it may, the proposal includes improvements to cycling infrastructure on this part of Eastbourne Road as well as provision for new pedestrian access along the site frontage which would also support trips by wheeling. These measures would already enhance opportunities for travel by sustainable modes, both for users of the development and the wider community in accordance with the broad objectives of the HPEMAC scheme. Given the potential for duplication, I am not therefore persuaded that it would be reasonable to require

the Highways Contribution in this case to be calculated to reflect trips by wheeling, cycling or on foot.

87. In my judgement and on the basis of the evidence that is before me in this appeal, I find that a Highways Contribution of £270,000 as sought by the LHA would not be fairly and reasonably related in scale and kind to the development having regard to the specific nature of the proposal. A Highways Contribution of £74,000 however would be fairly and reasonably related in scale and kind to the development and in my view is the appropriate level of contribution.
88. For the avoidance of doubt, I therefore confirm that the Highways Contribution is payable in the amount of £74,000.
89. In respect of the highway works, the UU essentially requires a s278 Agreement to secure the carrying out of specified highway works prior to the commencement of development, and that these works are carried out prior to occupation of the development. The highway works are defined as meaning the removal of trees within the highway verge, highway works relating to access, footways, cycle lane tie in, street lighting, drainage and carriageway works, off-site bus stop enhancements of Brightling Road stops and internal non-motorised access provision to connect to Courtland Road.
90. The removal of trees within the highway verge and works relating to access, footways, cycle lane tie in, street lighting, drainage and carriageway works are necessary to ensure safe and suitable access to the development. Obligations requiring that the footway along the site frontage remained generally open for access for the lifetime of the development would also be necessary to ensure that safe and suitable pedestrian access to the development was maintained.
91. However, non-motorised access provision to connect to Courtland Road was not indicated as forming part of the development. It has not therefore been subject to public consultation and would require a separate approval outside of the appeal which I cannot be sure would be forthcoming. It was also common ground during the Hearing that while the obligation would require provision to connect to Courtland Road, it would not necessarily ensure that a link was then opened. Furthermore, I accept that internal non-motorised access provision to connect to Courtland Road could enhance access from areas to the north of the site by shortening the route to the development. However, while this would be an improvement, the difference would be relatively small and there is no compelling evidence before me to demonstrate that the accessibility of the development would be unacceptably compromised in its absence. Taking these factors together, I am not satisfied that a requirement for non-motorised access provision to connect to Courtland Road as part of the highway works would be reasonable or necessary to make the development acceptable in planning terms. This aspect would not therefore meet the statutory tests set out in the CIL Regulations.
92. Furthermore, the LHA had indicated during the Hearing that it would accept a reduced Highways Contribution where bus stop improvements were carried out by the appellant as part of highway works, essentially because this would duplicate elements of the HPEMAC scheme related to bus improvements. Insofar as the Highways Contribution in the completed UU has not been reduced in this way, it follows that it would include provision that could go towards supporting bus facilities, and the LHA and Council did not dispute the suggestion during the

Hearing that this could include bus stop enhancements to Brightling Road stops. Requiring that these improvements formed part of the Highway Works would therefore result in duplication. Moreover, there would be a chance that enhancements were not delivered through the Highways Contribution in advance of the development coming forward. However, while I accept that enhancements to the bus stops may in themselves be desirable, there is no compelling evidence to demonstrate that the development or its accessibility would be unacceptable in the absence of these measures. I am not therefore persuaded that a requirement for off site bus stop enhancements as part of the highway works would be reasonable or necessary to make the development acceptable in planning terms. This aspect would not therefore meet the statutory tests set out in the CIL Regulations.

93. The UU also provides that the s278 agreement shall include payment of the 'CAVAT Value', if I confirm that it is payable. The Tree Removal Note sets out the CAVAT value of any tree(s) to be felled will be charged and that this will be calculated at the point the LHA approve the removal of the tree(s). However, I have noted above that the Tree Removal Note is not adopted as planning guidance and attracts very limited weight. I have not been directed to any other development plan policy or guidance which would require payment of a CAVAT value. Nor is there any clear evidence to show what planning purpose the payment would serve or how it would be used. On the basis of the information that is before me in this appeal, I am not satisfied that payment of the CAVAT Value would be necessary to make the development acceptable in planning terms. It may be a matter for discussion between the parties in respect of the s278 agreement, but for the purposes of this appeal, it would not therefore meet the statutory tests set out in the CIL Regulations and for the avoidance of doubt, I confirm that the CAVAT Value is not payable in respect of the current appeal.
94. Part 3 of Schedule 2 of the UU relates to tree replanting. It includes obligations providing for a tree replanting scheme including management and maintenance arrangements, as well as a commuted sum towards the costs of maintaining and managing trees (excluding whips) planted within the highway verge. These measures would ensure mitigation for the removal of trees on the site and that this mitigation endures in the long term. From the information before me, I am satisfied that these obligations would be necessary to make the development acceptable in planning terms, directly related to the development, and fairly and reasonably related in scale and kind to the development.
95. There is a further obligation relating to payment of a Tree Replanting Scheme Administrative Fee towards the costs of carrying out public consultation required to fell public asset trees under s96A of the Highways Act. However, I have noted above that it is unclear whether this would be required. Even if it were, I consider that this and payment of any relevant costs or fees by the development would be a matter to address through the s278 process. Given these factors, it is not clear that the fee would be necessary to make the development acceptable in planning terms. Moreover, the Council and LHA representatives were unable to explain the basis for the requested fee during the Hearing. It is not therefore apparent that it would be fairly and reasonably related in scale and kind to the development. The Tree Replanting Scheme Administrative Fee would not therefore meet the statutory tests set out in the CIL Regulations.
96. Drawing these matters together, obligations relating to non-motorised access provision to connect to Courtland Road and off site bus stop enhancements as part

of Highway Works, payment of the CAVAT Value and payment of the Tree Replanting Scheme Administrative Fee would not meet the statutory tests set out in the CIL Regulations. I have not therefore given weight to these obligations or taken them into account in my decision.

97. However, in light of the supporting information and evidence that is before me, I find that each of the other obligations in the Bilateral, including a Highways Contribution of £74,000, would meet the tests set out in the CIL Regulations and can be given weight. I have taken them into account.
98. The UU also includes provision for a monitoring fee. From the information before me, I have no firm reason to doubt that this would be fairly and reasonably related in scale and kind to the development and estimated costs of monitoring. On that basis, the provision would accord with Regulation 122(2A) of the CIL Regulations.
99. Finally on planning obligations, I find no compelling basis to depart from the main parties' position that further financial support for bus services as requested by Brighton and Hove Buses would be unnecessary given the provisions of the Highways Contribution. It would not therefore meet the tests set out in the CIL Regulations and the absence of an obligation securing further contributions towards bus services does not therefore weigh against the proposal.

Planning Balance

100. I have found that there would be suitable access to the development, that the proposal would make adequate provision for BNG and drainage and that there would not be unacceptable harm to protected or priority species. However, there would be some harm to the character and appearance of the area resulting in conflict with Policies EN12 and EN27 of the LP. The relevant provisions of these policies are broadly consistent with the Framework, and I have no firm reason to reduce the weight that I afford to the ensuing conflict with them.
101. Nevertheless, the Framework is an important material consideration. It sets out that decisions on development proposals should apply a presumption in favour of sustainable development, applying Policy S4 when considering development proposals within settlements and Policy S5 outside settlements.
102. As defined in the glossary to the Framework, a 'settlement' includes cities, towns, villages and other predominantly built-up areas, including land which is allocated or has permission for development which will form part of the built-up area once the development is complete. The definition continues that this includes areas defined as a settlement in the development plan, but it is clear from the use of 'includes' that being within an area defined as settlement in the development plan is not a pre-requisite for being a settlement in the terms of the Framework.
103. In this case, the appeal site is outside of the Polegate/Willingdon development boundary as defined by the LP. However, it adjoins development which is within the boundary to three sides and to the fourth side is recent development following implementation of planning permission at Hindslands. Given its relationship with existing built-form including that which it adjoins to the north and south, I consider that the Hindslands site will clearly form part of the Polegate/Willingdon built-up area on completion. Having regard to the definition in the Framework, the appeal site would therefore sit within a predominantly built-up area and I find that it would be within a settlement for the purposes of the Framework. As a consequence,

Framework Policy S4 which sets out that development proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework, applies.

104. The proposal would cause harm to the character and appearance of the area through the removal of trees and vegetation along the site frontage which would not be fully mitigated by replacement planting. However, the harm would be localised and in my judgement, the overall effect would be moderate. I further consider that there is appropriately clear justification for the harm such that Framework Policy DP3 does not indicate that development should necessarily be refused.
105. On the other hand, the Council is unable to demonstrate a five year supply of deliverable housing. The main parties also advised during the Hearing that the Council's Housing Delivery Test 2025 result was 89%, indicating that housing delivery over the previous three years has been some way below requirements. Furthermore, while interested parties refer to instances of care homes that have closed down or which remain partly unoccupied, the Council's evidence highlights a shortfall in specialist accommodation for older people and the important role that care homes can play in meeting this need.
106. Although details of the care home including its size would be determined at reserved matters stage, the nature of the development would make a valuable contribution to meeting the identified needs for accommodation for older people, as well as the overall supply of residential accommodation in the district. In accordance with Policy H07 of the Framework, I afford substantial weight to the benefit of providing homes which will contribute towards meeting evidenced accommodation needs.
107. In respect of the foodstore, the Council's Wealden Town Centres Study 2026 identifies significant capacity for additional retail development to 2030. It notes that capacity does not equate to need. Nevertheless, and while the appeal site is not allocated to provide additional retail capacity, the development would increase consumer choice for the community by providing an alternative option for local food shopping. I afford moderate weight to this factor.
108. The Framework also includes an objective to support long-term economic growth both locally and nationally. The proposal would offer economic benefits through employment and contributions to the local and wider economy. Those during construction stage would be temporary, but there would also be long-term benefits on operation where the appellant's undisputed evidence indicates that the foodstore would support around 40 full time equivalent jobs once open. There would also be employment associated with the care home, albeit that the level is currently unclear. In my judgement, the long-term contributions to employment and economic activity would be meaningful, and I afford significant weight to the economic benefits of the proposal.
109. The provision of widened cycle lanes and a footway along the site frontage may be required to support suitable access to the development. However, there would also be benefit to the wider community who may rely on these routes, including residents of the Hindslands site who would no longer need to cross Eastbourne Road to travel towards Polegate centre on foot, and I give moderate weight to the benefit of enhanced accessibility. I also give moderate weight to ecological

enhancements that the development would support through measures including new planting of native species to support wildlife populations and strengthen connectivity along boundaries, even if some BNG delivery would rely on purchase of off site biodiversity units.

110. Taken cumulatively, these benefits of the proposal would not in my judgement be close to being substantially outweighed by the adverse effects of the development when assessed against the national decision-making policies in the Framework. Policy S4 of the Framework therefore indicates that development should be approved.
111. Taking account of all of the above, I find that the proposal would conflict with the development plan when it is read as a whole. Nevertheless, the presumption in favour of sustainable development set out in Policies S3 and S4 of the Framework applies and indicates that development should be approved. In this context, I find that material considerations would outweigh the conflict with the development plan.

Conditions

112. I have considered suggested conditions in light of the discussion and amendments proposed at the Hearing, and against the tests within the Framework. Where necessary, I have made minor amendments for clarity, brevity or to ensure compliance with the relevant tests.
113. In respect of the full element, I have attached the standard time limit condition (1) and a condition specifying the relevant plans (2) for the avoidance of doubt and in the interests of certainty.
114. Further details of landscaping (3) and external materials (4) are necessary in the interests of the character and appearance of the area while a condition requiring the internal access, loading areas and parking to be provided (5) is necessary in the interests of highway safety and to support sustainable transport. Conditions regarding noise assessment of plant and machinery (6), delivery hours (7) and delivery operations (8) are necessary in the interests of the living conditions of nearby occupiers. I have also attached a condition restricting the use of the foodstore (9) which is necessary including in the interests of highway safety and neighbouring living conditions given that other uses could give rise to different effects which have not been assessed.
115. In respect of the outline element, I have attached standard conditions relating to the submission of reserved matters (10) and the time limits associated with this (11, 12). I have also included conditions specifying the relevant plans (13) and requiring accordance with the submitted parameter plan (14) for the avoidance of doubt and in the interests of certainty while a noise assessment (15) is necessary in the interests of the living conditions of future occupiers.
116. In respect of both the full and the outline elements, a condition requiring a phasing plan (16) is necessary in the interests of certainty and to enable to proper application and discharge of other conditions.
117. Conditions relating to construction management (17, 18) are necessary in the interests of highway safety and the living conditions of nearby occupiers. Conditions to require archaeological investigation (19) and reporting (31) are necessary to safeguard heritage assets of archaeological interest, while conditions

regarding the protection of trees (20, 21) are necessary to safeguard these trees and in the interests of the character and appearance of the area. Conditions to require further details of surface water drainage (22), a verification report (29) and future management and maintenance (30) as well as details of foul drainage (23) are necessary to ensure appropriate provision for drainage and in the interests of flood risk and safeguarding the environment.

118. A Construction Environmental Management Plan (24), reptile mitigation measures (25), appropriate lighting (26) and biodiversity enhancement measures (27) are necessary to safeguard biodiversity and, in the case of lighting, the living conditions of nearby occupiers. I have also attached a condition requiring management of landscaping (28) which is necessary in the interests of the character and appearance of the area. A condition requiring provision and maintenance of visibility splays (32) is necessary in the interests of highway safety while a condition relating to unexpected contamination (33) is necessary to safeguard the environment and health. Finally, noise assessment of any air source heat pumps (34) is necessary in the interests of the living conditions of neighbouring occupiers.
119. Conditions 3, 16, 17, 19, 20, 22, 23, 24 and 25 are pre commencement conditions because they require details to be confirmed and/or in place prior to or during construction works in order to be effective in achieving their intended purpose. The appellant has agreed to these conditions in writing.
120. An initially suggested condition requiring details of highway works would duplicate elements of the requirements of planning obligations relating to agreement and implementation of Highway Works. In addition, a suggested condition in respect of external materials for the outline element would relate to the appearance of development and so can be addressed in the consideration of reserved matters applications or through the imposition of conditions on a reserved matters approval. These conditions are therefore unnecessary, and I have not imposed them.
121. I have not repeated the Council's suggested 'Informatives', but the appellant should be aware of these from the appeal documentation.
122. The appellant's attention is additionally drawn to the deemed BNG condition under the provisions of Schedule 7 of the Act which provides that development may not be begun unless a biodiversity gain plan has been submitted to and approved by the Local Planning Authority.

Conclusion

123. The proposal would conflict with the development plan when it is read as a whole, but there are material considerations which indicate that planning permission should in this case be granted other than in accordance with the development plan. I therefore conclude that the appeal should be allowed.

J Bowyer

INSPECTOR

SCHEDULE OF CONDITIONS

Conditions Relating to the Full Element

- 1) The development hereby permitted shall begin not later than three years from the date of this decision.
- 2) Unless otherwise amended under the conditions below, the development hereby permitted shall be carried out in accordance with the following approved plans:
 - 19355_THPK-DR-A-0100 P1
 - 19355_THPK-DR-A-0119 P8
 - 19355_THPK-DR-A-0120 P19
 - 19355_THPK-DR-A-0121 P20
 - 19355_THPK-DR-A-0122 P10
 - 19355_THPK-DR-A-0123 P4
 - 19355_THPK-DR-A-0124 P2
 - 19355_THPK-DR-A-0125 P1
 - 19355_THPK-DR-A-0126 P2
 - 19355_THPK-DR-A-0127 P3
 - 23071-010 Rev E
 - 19355_SFHH-XX-XX-DR-L-TR01 Rev A
- 3) Prior to the commencement of development, excluding construction access, hereby permitted and notwithstanding the details shown on the landscaping plans (ref: 19355-SFW-XX-XX-DR-L-0001-P06), a detailed hard and soft landscaping scheme shall be submitted to and approved in writing by the Local Planning Authority. The scheme shall include:
 - a) existing and proposed levels;
 - b) all hard surfacing materials;
 - c) planting plans, including species, sizes, densities and planting specification;
 - d) boundary treatments;
 - e) street furniture and other landscape features; and
 - f) a programme for implementation.

The approved landscaping shall be carried out in accordance with the approved programme.
- 4) Prior to the construction of the foodstore above slab level, details of the external facing and roofing materials, including manufacturers' catalogue details and photographs, shall be submitted to and approved in writing by the Local Planning Authority. The development shall thereafter be carried out in accordance with the approved details.
- 5) Prior to the first use of the foodstore hereby permitted, the internal access road, loading areas, vehicle parking spaces, cycle parking facilities and vehicle turning areas shall be constructed and laid out in accordance with drawing no. 19355_THPK-DR-A-0122 Rev P10. The approved facilities shall thereafter be retained and kept available for their intended purposes at all times.
- 6) Notwithstanding the provisions of the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended) (or any order revoking and re-enacting that Order with or without modification), no external plant

or machinery serving the foodstore hereby permitted shall be installed until a Plant Noise Assessment has been submitted to and approved in writing by the Local Planning Authority.

The assessment shall be prepared by a suitably qualified acoustic consultant and shall include:

- a) the location, appearance, scale and technical specification of all external plant and machinery;
- b) predicted operational noise levels from the proposed plant and machinery;
- c) an assessment of the likely impact on nearby noise-sensitive receptors in accordance with BS 4142:2014+A1:2019 and BS 8233:2014 (or equivalent standards if replaced), including existing background noise levels established through a minimum 24-hour baseline survey; and
- d) details of any mitigation measures necessary to ensure that the operation of the plant and machinery does not give rise to unacceptable impacts on the amenities of neighbouring occupiers.

The approved plant and machinery shall be installed in accordance with the approved assessment before first being brought into use and shall thereafter be retained and maintained in accordance with the approved details.

- 7) No deliveries or despatches to or from the foodstore hereby permitted shall take place except between the hours of 0600 and 2300 on Mondays to Saturdays and 0800 and 2000 on Sundays or Bank and Public Holidays.
- 8) In connection with delivery operations at the foodstore hereby permitted:
 - a) No movement of goods pallets or roll cages within the open service yard shall take place before 0600 or after 2300 on Mondays to Saturdays, and before 0800 or after 2000 on Sundays or Bank and Public Holidays;
 - b) No vehicles operating within the foodstore site, service yard, parking or internal access roads, before 0600 or after 2300 on Mondays to Saturdays, and before 0800 or after 2000 on Sundays or Bank and Public Holidays, shall use audible reversing alarms; and
 - c) The refrigeration units of delivery vehicles shall be switched off whilst vehicles are within the foodstore site, service yard, parking or internal access roads before 0600 or after 2300 on Mondays to Saturdays, and before 0800 or after 2000 on Sundays or Bank and Public Holidays.

The above measures shall be adhered to at all times.

- 9) The foodstore hereby permitted shall be used only for the display or retail sale of goods, other than hot food, falling within Class E(a) of the Schedule to the Town and Country Planning (Use Classes) Order 1987 (as amended), and for no other purpose (including any other purpose within Class E of the Schedule to that Order or in any provision equivalent to that Class in any statutory instrument revoking and re-enacting that Order, with or without modification).

Conditions Relating to the Outline Element

- 10) Details of the appearance, landscaping, layout and scale (hereinafter referred to as “the reserved matters”) shall be submitted to and approved in writing by the Local Planning Authority before any development takes place. The development shall be carried out in accordance with the approved details.
- 11) Application for approval of the reserved matters shall be made to the Local Planning Authority not later than three years from the date of this permission.
- 12) The development hereby permitted shall take place not later than two years from the date of approval of the last of the reserved matters to be approved.
- 13) The development hereby permitted shall be carried out in accordance with the following approved plans: 19355_THPK-DR-A-0100 P1 and 23071-010 Rev E.
- 14) The reserved matters submitted pursuant to this permission shall be in accordance with the approved Parameter Plan, drawing no. 19355_THPK-DR-A-0119 Rev P8.
- 15) Any reserved matters application relating to the care home shall be accompanied by a Noise Assessment undertaken by a suitably qualified acoustic consultant in accordance with BS 8233:2014 (or equivalent standard if replaced).

The Noise Assessment shall assess the impact of existing external noise sources on the proposed development and shall include a Noise Attenuation Scheme identifying any mitigation measures necessary to ensure that appropriate internal and external noise levels are achieved for future occupants.

The reserved matters submission shall demonstrate how the findings and recommendations of the Noise Assessment and Noise Attenuation Scheme have been incorporated into the layout, orientation and design of the care home, including, where necessary, details of glazing, ventilation, acoustic screening and any other mitigation measures.

The development shall thereafter be carried out in accordance with the approved reserved matters and the approved Noise Attenuation Scheme. The approved mitigation measures shall be installed prior to the first occupation of the care home and shall thereafter be retained.

Conditions Relating to Both the Full and Outline Elements

- 16) The development hereby permitted may be carried out in one or more phases. Prior to the commencement of development, or of any phase of the development, a Phasing Plan identifying the extent of each phase and its relationship to the remainder of the development shall be submitted to and approved in writing by the Local Planning Authority.

The development shall thereafter be carried out in accordance with the approved Phasing Plan.

- 17) No development shall commence on either the full or outline elements of the development hereby permitted until a Code of Construction Practice (CoCP) has been submitted to and approved in writing by the Local Planning Authority.

The Code of Construction Practice shall include, but not be limited to, details of:
a) the anticipated programme and phasing of the construction works;

- b) construction vehicle routing, including approved routes to and from the site;
- c) the anticipated number, frequency and types of construction vehicles;
- d) permitted construction traffic arrival and departure times;
- e) temporary access arrangements, site access and egress, and on-site turning facilities;
- f) parking for site operatives and visitors;
- g) loading, unloading and storage of plant, materials and waste;
- h) measures for the management of loose loads;
- i) wheel washing facilities and other measures to prevent the deposition of mud and debris on the public highway;
- j) temporary traffic management measures, including any Traffic Regulation Orders and traffic management arrangements required on the A2270 and any mitigation measures affecting the Strategic Road Network;
- k) the control of noise, vibration, dust and dirt during construction, including measures in accordance with BS 5228-1:2009+A1:2014 (or equivalent standard if replaced);
- l) measures to protect groundwater and surface water from pollution;
- m) measures to manage surface water and flood risk both on and off the site during construction;
- n) the location and design of site compounds, welfare facilities, storage areas, security hoarding and site offices;
- o) arrangements for communication and liaison with local residents and businesses before and throughout the construction period; and
- p) a prohibition on the burning of waste or other materials on the site.

The development shall thereafter be carried out in full accordance with the approved Code of Construction Practice throughout the construction period.

- 18) No site preparation, demolition or construction works, including the loading or unloading of materials, plant or equipment, shall take place other than between the hours of:
- 0800 to 1800 Mondays to Fridays;
 - 0800 to 1300 on Saturdays; and
 - at no time on Sundays or Bank and Public Holidays.
- 19) No development shall commence until a Written Scheme of Investigation (WSI) for a programme of archaeological works has been submitted to and approved in writing by the Local Planning Authority. The programme of archaeological works shall thereafter be carried out in full accordance with the approved Written Scheme of Investigation.
- 20) No development shall commence until a detailed Arboricultural Method Statement (AMS) for all retained trees has been submitted to and approved in writing by the Local Planning Authority.

The AMS shall be prepared in accordance with BS 5837:2012 – Trees in Relation to Design, Demolition and Construction – Recommendations (or equivalent standard if replaced) and shall include:

- a) confirmation of tree numbering and root protection areas;
- b) details of all tree protection measures;
- c) construction methods where works are proposed within or adjacent to root protection areas, including any no-dig construction;
- d) the routing of service trenches, utilities and hard surfacing;
- e) arboricultural supervision and monitoring arrangements.

The development shall thereafter be carried out in full accordance with the approved Arboricultural Method Statement throughout the construction period.

- 21) No development shall commence within the relevant phase until all trees and hedgerows to be retained in accordance with the approved Tree Removal Plan (ref. 19355-SFH-XX-XX-DR-L-TR01 Rev A) have been protected by fencing and ground protection measures in accordance with the approved Arboricultural Method Statement pursuant to Condition 20 and BS 5837:2012 (or equivalent standard if replaced).

The approved tree protection measures shall remain in place for the duration of the construction works.

No activities shall take place within the protected root protection areas unless expressly authorised by the approved Arboricultural Method Statement or otherwise agreed in writing by the Local Planning Authority. Such activities include:

- a) alteration of ground levels;
- b) excavation, trenching or soil removal;
- c) construction of buildings, hard surfaces or engineering works;
- d) storage of materials, spoil or plant;
- e) vehicular access or parking;
- f) lighting of fires or burning of materials.

- 22) A detailed surface water drainage scheme for the relevant phase of development shall be submitted to and approved in writing by the Local Planning Authority:
- (i) prior to the commencement of development for the foodstore; and.
 - (ii) prior to or with the submission of any reserved matters application relating to the care home.

The scheme shall be based on sustainable drainage principles and shall include:

- a) details of the proposed surface water drainage system, with surface water discharge rates not exceeding 2.2 l/s for all rainfall events, including those with 1 in 100 (+40% for climate change) annual probability of occurrence;
- b) hydraulic calculations demonstrating that the surface water drainage system has been designed to accommodate the appropriate rainfall events, including appropriate allowances for climate change and urban creep. The hydraulic calculations shall take into account the connectivity of the different surface water drainage features;

- c) details of the means of surface water disposal, including any flow control measures, outfall of the proposed attenuation tank(s) or any other attenuation features proposed and how they connect into the sewer with cross sections and invert levels;
- d) details of the attenuation tank, which shall be informed by findings of groundwater monitoring between autumn and spring. The design should leave at least 1m unsaturated zone between the base of the ponds and the highest recorded groundwater level. If this cannot be achieved, details of measures which will be taken to manage the impacts of high groundwater on the drainage system shall be provided;
- e) details of exceedance flow routes, with details on flood depths, demonstrating that, in the event of rainfall exceeding the design standard, surface water will be safely managed on the site and will not increase flood risk on or off the site;
- f) details of the management of surface water during construction; and
- g) a programme for implementation of the approved drainage works.

The approved scheme shall be implemented in accordance with the approved details and completed prior to the first occupation of the relevant phase of development.

- 23) Prior to the commencement of the relevant phase of development, a scheme for the provision of foul drainage infrastructure for that phase shall be submitted to and approved in writing by the Local Planning Authority.

The scheme shall include:

- a) details of the proposed foul drainage system;
- b) the timing of its implementation; and
- c) details of any off-site reinforcement or upgrading works required to provide sufficient capacity to serve the development.

The approved foul drainage scheme shall be implemented in accordance with the approved details prior to the first occupation of the buildings to which it relates. Any off-site reinforcement or upgrading works required to provide sufficient capacity for the development shall be completed prior to the connection of the relevant phase of development to the public foul sewer.

- 24) No development shall take place until a Construction Environmental Management Plan (CEMP: Biodiversity) has been submitted to and approved in writing by the Local Planning Authority.

The CEMP: Biodiversity shall include, but not be limited to:

- a) details of ecological protection measures to be implemented during construction;
- b) the timing of works to avoid harm to protected and priority species, including breeding birds;
- c) measures for the protection of great crested newts, badgers, reptiles, amphibians and other protected species identified within the Ecological Impact Assessment;

- d) procedures to be followed should protected species be encountered during the course of the works;
- e) details of any required exclusion fencing, habitat protection measures and precautionary working methods;
- f) measures to prevent the spread of invasive non-native species;
- g) details of the roles and responsibilities of an Ecological Clerk of Works (or other suitably qualified ecologist), including supervision, site inspections and toolbox talks where required;
- h) a programme for implementation and monitoring of the approved measures throughout the construction period and any review or additional matters in subsequent phases;
- i) details of a pre-commencement walkover survey undertaken a minimum of three months prior to works, to identify any changes in ecological conditions since the completion of the submitted ecological surveys, including the identification of any newly established badger setts or other protected species resting places; and
- j) procedures to be followed should a badger sett or other protected species resting place be identified during the walkover survey or at any stage during construction, including cessation of works where necessary and consultation with a suitably qualified ecologist and, where required, Natural England.

The development shall thereafter be carried out in full accordance with the approved CEMP: Biodiversity throughout the construction period.

- 25) No development, site clearance, vegetation removal, soil stripping, groundworks or other works that may adversely affect reptiles shall take place until a detailed Reptile Mitigation Strategy has been submitted to and approved in writing by the Local Planning Authority.

The Reptile Mitigation Strategy shall build upon the mitigation principles set out in the Ecological Impact Assessment Revision B by Smeeden Foreman and the Reptile Avoidance Mitigation Enhancement Strategy at Appendix 01 to the Appeal Statement (Ecology) April 2026 by Smeeden Foreman and shall include, but not be limited to:

- a) the location and extent of the proposed receptor site(s);
- b) an assessment of the habitats present within the receptor site(s), including their ecological function for reptiles;
- c) an assessment of the existing reptile population within the receptor site(s), supported by recent survey information undertaken in accordance with current best practice;
- d) an assessment demonstrating that the receptor site(s) have sufficient carrying capacity to accommodate the translocated reptiles, together with details of any habitat enhancement works required to increase carrying capacity where necessary;
- e) details of the proposed reptile translocation methodology and timetable;

- f) details of habitat creation, enhancement and management measures for reptiles;
- g) details of the body or organisation responsible for implementing and managing the mitigation strategy;
- h) a monitoring programme, including contingency and remedial measures where monitoring demonstrates that the objectives of the strategy are not being achieved; and
- i) details of the legal and funding mechanisms to secure the implementation, long-term management and monitoring of the mitigation strategy.

The approved Reptile Mitigation Strategy shall be implemented in full in accordance with the approved timetable and shall thereafter be managed and monitored in accordance with the approved details.

- 26) Prior to the installation of any external lighting within the relevant phase of development, a Sensitive Lighting Strategy for that phase shall be submitted to and approved in writing by the Local Planning Authority.

The Sensitive Lighting Strategy shall include:

- a) the location, height, design and specification of all external lighting;
- b) details of the intensity, spread and direction of illumination, including lighting contour plans and predicted lux levels;
- c) measures to minimise light spill, glare and upward light intrusion, including the use of cowls, baffles or shields where appropriate;
- d) details demonstrating how dark corridors will be retained and maintained for bats and other nocturnal wildlife, including along retained trees, hedgerows and other ecological features; and
- e) details of the hours of operation and any lighting controls, including timers, dimming or motion sensors where appropriate.

The external lighting shall be installed and thereafter operated in accordance with the approved Sensitive Lighting Strategy for the lifetime of the development.

- 27) Prior to the commencement of development above slab level within the relevant phase of development, a Biodiversity Enhancement Plan for that phase shall be submitted to and approved in writing by the Local Planning Authority.

The Biodiversity Enhancement Plan shall include, but not be limited to:

- a) details of the location, specification and number of integrated bat and bird boxes, bat bricks, bird bricks and other wildlife features to be incorporated within the development;
- b) details of hedgehog connectivity measures, including hedgehog gaps within boundary treatments where appropriate;
- c) details of habitat enhancement measures, including native planting, species-rich grassland, deadwood habitat, log piles, invertebrate habitat features and other biodiversity enhancements where appropriate;

- d) a timetable for the implementation of the approved biodiversity enhancement measures; and
- e) details of the future management and maintenance of the biodiversity enhancement features.

The approved biodiversity enhancement measures shall be implemented in accordance with the approved timetable and shall thereafter be retained and maintained for the lifetime of the development.

- 28) Prior to the first occupation of the relevant phase of development hereby permitted, a landscape management plan, including long term design objectives, a written specification outlining cultivation and other operations associated with trees, plant and grass establishment, and maintenance schedules for all landscape areas, other than areas to be adopted by the Local Highway Authority, shall be submitted to and approved in writing by the Local Planning Authority.

All landscaping and planting shall be maintained in accordance with the approved management plan.

Any trees or plants which, within a period of five years from the completion of the planting, die, are removed or become seriously damaged or diseased shall be replaced in the next planting season with others of similar size and species.

- 29) Prior to the first occupation of the relevant phase of development, a Verification Report with evidence (including photographs) for that phase demonstrating that the approved surface water drainage scheme pursuant to condition 22 has been constructed and completed in accordance with the approved details shall be submitted to and approved in writing by the Local Planning Authority

The Verification Report shall include:

- a) confirmation that the approved drainage system has been constructed in accordance with the approved design;
- b) as-built drawings of the completed drainage system;
- c) results of any inspections and testing undertaken during construction; and
- d) details of any departures from the approved scheme together with justification for those changes.

The relevant phase of development shall not be occupied until the Verification Report has been approved in writing by the Local Planning Authority.

- 30) Prior to the first occupation of the relevant phase of development, a scheme for the future management and maintenance of the approved surface water drainage system for that phase pursuant to condition 22 shall be submitted to and approved in writing by the Local Planning Authority.

The scheme shall include:

- a) details of the body or organisation responsible for the management and maintenance of the drainage system;
- b) a maintenance schedule for all drainage components, including SuDS features;
- c) arrangements for inspection, repair and replacement of drainage infrastructure throughout its operational life; and

- d) arrangements to secure the long-term funding and implementation of the maintenance scheme.

The approved management and maintenance scheme shall be implemented upon first occupation of the relevant phase of development and shall thereafter be retained and operated in accordance with the approved details for the lifetime of the development.

- 31) No phase of the development hereby permitted shall be brought into use until the archaeological site investigation and post-investigation assessment for that phase, including provision for analysis, publication, dissemination of the results and archive deposition, has been completed in accordance with the Written Scheme of Investigation approved pursuant to Condition 19 and has been submitted to and approved in writing by the Local Planning Authority.
- 32) The vehicular access hereby permitted shall not be brought into use until visibility splays measuring 2.4 metres x 48.5 metres to the north and 2.4 metres x 59.9 metres to the south, as shown on drawing no. 23071-010 Rev E, have been provided and are free from any obstruction exceeding 600mm above the level of the adjacent carriageway.

The visibility splays shall thereafter be retained and maintained free from any obstruction exceeding 600mm above the level of the adjacent carriageway.

- 33) If during the course of development, contamination not previously identified is found to be present at the site, no further development (unless otherwise agreed in writing by the Local Planning Authority) shall be carried out until the contamination has been reported to the Local Planning Authority.

An investigation and risk assessment shall be undertaken and, where remediation is necessary, a remediation scheme shall be submitted to and approved in writing by the Local Planning Authority.

Following completion of any approved remediation works, a Verification Report shall be submitted to and approved in writing by the Local Planning Authority before development recommences or the affected part of the development is first occupied.

- 34) Prior to the installation of any air source heat pump serving the development hereby permitted, a Noise Assessment Report prepared by a suitably qualified acoustic consultant shall be submitted to and approved in writing by the Local Planning Authority.

The Noise Assessment Report shall:

- a) assess the predicted noise emissions from the proposed air source heat pump(s), including the cumulative impact of multiple units where applicable;
- b) demonstrate compliance with the Chartered Institute of Environmental Health and Institute of Acoustics Professional Practice Guidance on Planning and Noise – Professional Advice Note: Heat Pumps (or any subsequent replacement guidance);

- c) include details of any mitigation measures necessary to ensure that the operation of the equipment does not give rise to unacceptable impacts on the amenities of neighbouring occupiers.

The approved air source heat pump(s) shall be installed in accordance with the approved details and shall thereafter be retained and maintained in accordance with those details.

If requested in writing by the Local Planning Authority following installation, post-installation noise monitoring shall be undertaken and the results submitted to the Local Planning Authority. Where the monitoring identifies that additional mitigation is required, this shall be implemented within a timescale first agreed in writing with the Local Planning Authority.

End of Schedule

APPEARANCES

FOR THE APPELLANT:

Paul Tucker KC	Kings Chambers
Penny Moss	Avison Young
Tom Hawkey	Avison Young
Tom Roe	Avison Young
Ellen R Jones	THP
Alastair Macquire	Align LP
Daniel Wilkinson	Smeeden Foreman
Dan Robinson	Smeeden Foreman
Georgina Southon	Smeeden Foreman
Nick Bradshaw	Connect
Rachel Luttrell	Connect
Laura Partridge	Connect
Andrew Turnbull	Craddys
Louise Burnett	Freeths
Robert McClellan	Aldi

FOR THE LOCAL PLANNING AUTHORITY:

Claire Turner	Principal Planning Officer, Wealden District Council
Sarah Buckingham	Senior Planning Officer, Wealden District Council
Kal Kamboh	Strategic Sites Transport Advisor, East Sussex County Council
Anthony Becvar	Highways Environmental Asset Lead, East Sussex County Council

INTERESTED PARTIES:

Suzy Standen-Payne	Clerk, Willingdon and Jevington Parish Council
Ann Longden	Local resident
Mandy Gaved	Local resident

DOCUMENTS ACCEPTED AT AND AFTER THE HEARING

- HD1 GCN Impacts – Change of Circumstances letter dated 13 August 2026 by Smeeden Foreman, submitted by the appellant
- HD2 Drainage Technical Note dated 20 July 2026 by Craddys, submitted by the appellant
- HD3 Letter in respect of Polegate Windmill listed building dated 17 August 2026 by Cogent Heritage, submitted by the appellant
- HD4 Updated suggested conditions, submitted by the Council
- HD5 Updated suggested conditions, submitted by the appellant
- HD6 Drainage Mitigation Information to support shadow Habitat Regulation Assessment letter dated 19 August 2026 by Smeeden Foreman, submitted by the appellant
- HD7 BNG Monitoring fee calculator, submitted by the Council
- HD8 Updated agreed suggested conditions v6 dated 25 August 2026, submitted by the appellant
- HD9 Unilateral Undertaking dated 1 September 2026, submitted by the appellant.
- HD10 Bilateral Agreement dated 2 September 2026, submitted by the appellant.